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JUDGMENT SHEET

LAHORE HIGH COURT

MULTAN BENCH, MULTAN

JUDICIAL DEPARTMENT

Civil Revision No.743-D-2012

Mst. Nasreen Fatima

versus

Muhammad Hussain(deceased) through L.Rs. and others

J U D G M E N T

Date of Hearing:	22.04.2026
Petitioner by:	Mr. Muhammad Maalik Khan Langah, Advocate.
Respondent No.1 by	Nemo.
Respondents No. 2-B & 6-B by:	Malik Zahoor Hussain, Advocate.
Respondents No.2-A, 2-D,2-E by	Proceeded <i>ex parte</i> on 29.04.2014.
Respondents No.2-C, 3 and 6-E and 6-G by	Proceeded <i>ex parte</i> on 12.05.2014.
Respondents No.7 and 8 by	Mr.Kanwar Sajid Ali, Assistant Advocate General.

MUHAMMAD RAZA QURESHI, J. By invoking the supervisory jurisdiction of this Court under Section 115 of the Code of Civil Procedure, 1908 (“CPC”), the petitioner/defendant No.3, namely, Mst. Nasreen Fatima (“**petitioner**”) has called into question the legality, propriety and validity of the concurrent findings contained in judgments and decrees dated 06.10.2009 and 04.06.2012 passed by the learned Trial Court and the learned Appellate Court respectively, pursuant whereunto suit, *inter alia*, seeking declaration and cancellation of inheritance mutation No.40 (the “**Impugned Mutation**”) filed by Muhammad Hussain, plaintiff (“**Respondent No.1**”) against the petitioner as well as against predecessor of respondents No.2-A to 2-E and respondents No.3 to 8 was concurrently decreed.

2. The amended memo of parties expounds that during the pendency of instant petition, respondents No.2, 5 and 6 expired and their legal heirs were impleaded later on. However, only respondents No.2-B and 6-B contested the instant petition throughout. Though Respondent No.1 at initial stage contested the petition through his counsel, but subsequently he opted to stay away and even today no one is present on his behalf. Hence, Respondent No.1 is proceeded against *ex parte*. Similarly, respondents No.2-A, 2-C to 2-E, 3 to 5 and 6-A and 6-C to 6-L were also proceeded *ex parte*.

3. Learned counsel for the petitioner has pounced on the impugned judgments and decrees on numerous legal and factual grounds, contending that the same suffer from gross misreading and non-reading of evidence as well as misapplication of settled principles of law. According to learned counsel, both the learned Courts below botched to properly adjudicate upon the most crucial issue in the case, i.e., issue No.7-B relating to limitation, which goes to the roots of jurisdiction. Further submits that the Impugned Mutation was sanctioned as far back as 1965, whereas the suit was instituted by Respondent No.1 on 15.06.2002, after an unexplained and inordinate delay of approximately thirty seven (37) years, which is despairingly barred under the relevant provisions of the Limitation Act, 1908 (the “Act”), but the learned Courts below erroneously brushed aside this fundamental issue by holding that limitation is not applicable in cases of inheritance, which finding of the learned Courts below is antagonistic to the settled provisions of law. It was accentuated that limitation is not a mere technicality but a substantive legal bar and failure to decide this issue vitiates the entire proceedings. Learned counsel further contends that the Respondent No.1 had no *locus standi* to institute the suit, as his father, Muhammad Nawaz, who was a direct

beneficiary and fully conversant with the Impugned Mutation, never challenged the same during his lifespan, despite living for virtually three decades after its sanction. This omission, according to learned counsel, constitutes acquiescence, waiver and relinquishment of any alleged right. Consequently, the Respondent No.1, being a successor, can neither claim a better title than his predecessor nor revive a claim that stood extinguished during the lifetime of his father.

4. It was also argued that the conduct of Muhammad Nawaz and Ghulam Muhammad clearly validates that they had consciously and voluntarily abandoned their rights in favour of the petitioner. Their silence over such an elongated period, coupled with their acknowledgment of the Impugned Mutation, creates presumption of a lawful arrangement or family settlement, which cannot be disturbed after decades. Learned counsel nagged the Courts below for unnecessarily engaging in the determination of '*whether the parties belonged to the 'Hanfi' or 'Shia' sect*', and maintained that such a question was wholly extraneous in the circumstances of the case. According to him, even if such determination was perceived to be germane, no credible or independent evidence was produced by either side to establish their sect. Therefore, basing findings on such an unproven and immaterial issue amounted to misdirection in law. It was further submitted that the documentary evidence, particularly, the Impugned Mutation (Exh.P3), was misinterpreted by the learned Courts below. The petitioner was validly recorded as the sole heir of her father, Sarfraz, and the Impugned Mutation was sanctioned in the presence and with the consensus of the other legal heirs and there was no allegation of fraud, coercion, or misrepresentation at the time of sanctioning the Impugned Mutation, and even

otherwise, such allegations were neither pleaded with specificity nor proved through cogent evidence.

5. Lastly, learned counsel argued that the concurrent findings of the learned Courts below are not immune from interference in revisional jurisdiction where such findings are the outcome of jurisdictional error, misreading and non-reading of evidence or violation of settled legal principles. He, therefore, prayed that the impugned judgments and decrees be set aside and the suit be dismissed.

6. Conversely, learned counsel for the contesting respondents armored the impugned judgments and decrees while maintaining that the same were based on proper appreciation of evidence and correct application of relevant law. It was argued that the petitioner had been wrongfully conferred a share in excess of her lawful entitlement through the Impugned Mutation. According to the learned counsel, the parties belong to the '*Hanfi*' sect, under which the rules of Islamic inheritance undoubtedly approve the respective shares of heirs. In this context, it was submitted that the petitioner, being the daughter of Sarfraz, was entitled only to one-half of her father's share and not the entire estate as reflected in the Impugned Mutation and this element was obviously substantiated by documentary evidence, particularly Exh.P4, another mutation relating to property situated in *Mouza Ojla*, whereby the petitioner was allocated only half of her father's share. This, according to learned counsel, establishes a clear contradiction and demonstrates that the Impugned Mutation (relating to *Mouza Shah Dhanial*) was illegally and erroneously sanctioned. Therefore, the learned Courts below reasonably and justly appreciated the evidence and concluded that the Impugned

Mutation was illegal, void, and ineffective to the extent of depriving the rightful heirs of their lawful shares.

7. On the question of limitation, learned counsel submitted that inheritance rights are recurring in nature, therefore, the bar of limitation does not rigorously apply in such matters and the delay in filing the suit does not extinguish the Respondent No.1's right to claim his lawful inheritance. It was next contended that mere non-challenge of the Impugned Mutation by Muhammad Nawaz, father of Respondent No.1 during his lifetime does not divest his legal heirs of their independent and legal right to seek declaration and correction of the record. It was lastly argued that the findings are concurrent in nature and based on proper appreciation of evidence, thus, do not warrant interference in revisional jurisdiction.

8. Arguments of learned counsel for the parties have been heard and record has been perused, which transpires that suit for declaration and cancellation of Impugned Mutation was instituted on 15.06.2002. The defendants contested the suit and filed their respective written statements. The learned Trial Court out of divergent pleadings of the parties framed as many as eight issues. Amongst these, the most crucial and determinative were issues No. 5 and 7-B, which are reproduced hereunder:

5. *Whether the inheritance mutation No.40 dated 24.07.1965 in favour of the defendant No.3 is illegal and ineffective to the rights of the plaintiff as well as defendants No.4 to 8?OPP*

7-B *Whether the suit is time barred?OPD*

9. Upon thrashing evidence on issue No.5, the learned Trial Court arrived at a conclusion that the Impugned

Mutation was void and ineffective upon rights of Respondent No.1 and respondents No.2 to 6 and same was answered in favour of Respondent No.1. Likewise, on issue No.7-B, the learned Court declared that suit could not be considered as barred by time solely on the ground that Muhammad Nawaz never challenged the Impugned Mutation in his life time.

10. The perusal of pleadings, respective oral as well as documentary evidence and findings of the learned Courts below manifest that the subject matter property belonged to one Pehlwan, who had six sons, namely, Muhammad Yar, Muhammad Murad, Sarfraz, Muhammad Nawaz and Ghulam Muhammad. Muhammad Yar and Muhammad Murad died in life time of Pehlwan and at the time of death of Pehlwan on 20.11.1964 his only surviving sons were Sarfraz, Muhammad Nawaz and Ghulam Muhammad. The date of death of Pehlwan is not disputed. Just after four months of his demise, one of his sons, namely, Sarfraz also passed away. Death certificates of both Sarfraz and Pehlwan were adduced in evidence as Exh.P1 and Exh.P2.

11. Pehlwan had his agricultural land situated in *Mouza Shah Dhanial* and *Mouza Ojla*. The subject matter property in the instant suit is land measuring 80-Kanals 11-Marlas situated in *Mouza Shah Dhanial*, Tehsil Kabirwal, District Khanewal. Upon passing away of Pehlwan and Sarfraz, inheritance mutations were sanctioned. *Firstly*, the Impugned Mutation which pertains to property situated in *Mouza Shah Dhanial* was sanctioned. This mutation was sanctioned in favour of surviving sons, namely, Muhammad Nawaz and Ghulam Muhammad. The full share of Sarfraz was transferred through Impugned Mutation in favour of his sole surviving legal heir, the present petitioner. This mutation was adduced in evidence as Exh.P3.

12. With respect to property situated in *Mouza Ojla*, another mutation No.263 dated 30.08.1984 was sanctioned in favour of surviving sons of Pehlwan, namely, Muhammad Nawaz and Ghulam Muhammad. In this inheritance mutation, the petitioner was given 1/2 share from the estate of her father, Sarfraz, being her sole surviving legal heir.

13. It is pertinent to mention here that both the mutations were sanctioned in life time of two surviving sons of Pehlwan, namely, Muhammad Nawaz and Ghulam Muhammad. The father of Respondent No.1, namely, Muhammad Nawaz died in 1995, whereas Ghulam Muhammad remained alive till decision of the suit. Both Muhammad Nawaz and Ghulam Muhammad did not question the inheritance mutations in their life time. Despite fully cognizant of sanctioning of mutations including Impugned Mutation in their favour upon demise of Pehlwan, they had *locus standi* under the law to challenge the same because they were the beneficiaries of the share inheritable from their deceased brother, namely, Sarfraz. However, it remains an admitted fact that in their life time those mutations were never questioned by them and for the first time in 2002, Respondent No.1 filed the suit questioning the Impugned Mutation.

14. The most pivotal question on which the whole edifice was standing required to be determined by the learned Courts below was that as to whether the Respondent No.1 had *locus standi* to file the suit, as admittedly his father, namely, Muhammad Nawaz neither questioned the Impugned Mutation nor claimed his inheritance in his life time. The second question that required determination by the learned Courts below was that as to whether the suit filed by Respondent No.1 was within a period of limitation.

15. Both the learned Courts below misled themselves by entangling into resolution of controversy whether the parties belonged to 'Hanfi' or 'Shia' sect, which was subject matter of issue No.5. The perusal of respective oral evidence presented by both the parties clearly established that oral evidence led by respective parties is absolutely silent and this Court observes that actually both sides failed to prove their case through independent evidence corroborating the sect followed by them.

16. It is further observed that the burden to extricate a duly sanctioned mutation squarely rested upon Respondent No.1, which could only be discharged through cogent, independent and confidence-inspiring evidence. A bare perusal of the record reflects that, apart from making bald assertions, no independent corroborative evidence was produced by Respondent No.1 to encounter the perfection of the Impugned Mutation. Neither any attesting witness of the mutation proceedings was got examined, nor any official from the Revenue department was got produced by him to impeach the manner of its sanction. In absence of such supporting material, the presumption of truth attached to the mutation entry remained intact and unrebutted, rendering the challenge thereto legally unsustainable.

17. Under the law, it was imperative for the learned Courts below to hash out as to whether Respondent No.1 had even *locus standi* to challenge the Impugned Mutation as his father Muhammad Nawaz and uncle Ghulam Muhammad, who were the actual beneficiaries from the estate to be inherited, never questioned the Impugned Mutation in their life time. Muhammad Nawaz remained alive for about thirty years after sanctioning of Impugned Mutation. Ghulam Muhammad actually deposed in favour of his

niece/petitioner. In this regard, guidance may be sought from the authoritative pronouncements of the superior Courts in Muhammad Suleman vs. Riasat Ali (2002 SCMR 1330), Kala Khan and others vs. Rab Nawaz and others (2004 SCMR 517), Muhammad Rustam and another vs. Mst. Makhan Jan and others (2013 SCMR 299), Ghulam Abbas and others vs. Muhammad Shafi (2016 SCMR 1403), and Nasir Fahimuddin and others vs. Charles Philips Mills and others (2017 SCMR 468). The relevant extract from the last cited judgment is reproduced hereunder:

“This aspect of the matter has to be viewed in light of the conduct of lady Patinger because she had lived for about 33 years and despite that had never ever asserted herself to be owner of the suit property. Obviously in such circumstances her conduct would prove that she was not claiming the ownership of the property and, therefore, was estopped in terms of Article 114 of the Qanun-e-Shahadat Order, 1984. Consequently, no valid locus standi would pass on to her son for claiming ownership and thus son could not have passed a valid title in favour of respondent No.2.”

18. In ***Ghulam Abbas***’s case supra, similar principle was laid down. The relevant para-12 for ready reference is reproduced hereunder:

“12. Be that as it may, there is another important principle of law laid down by this Court which is applicable to the facts of the present case. An heir, who is directly affected by a wrongfully recorded mutation of inheritance, fails to challenge such mutation for a considerable length of time until his death, thereby deprives his heirs of locus standi to dispute such mutation on the ground of his estoppel, abandonment of claim/cause of action. Reference in this regard is made to Abdul Haq v. Surraya Begum (2002 SCMR 1330), Kala Khan v. Rab Nawaz (2004 SCMR 517) and Muhammad Rustam vs. Makhan Jan (2013

SCMR 299). The appellants' suit is not maintainable under that principle as well."

[Emphasis added]

Therefore, the suit filed by Respondent No.1 was not even maintainable.

19. The second preponderant issue before the learned Courts below was to determine as to whether suit was filed within time. In this regard, reference to Section 3 of the Act, is very substantial, which for ready reference is reproduced hereunder:

"Section 3 Dismissal of suit, etc, instituted, etc, after period of limitation.

Subject to the provisions contained in Section 4 to 25 (inclusive), every suit instituted, appeal preferred and application made after the period of limitation prescribed therefore by the First Schedule shall be dismissed, although limitation has not been set up as a defence."

20. Under the settled principle of law laid down by the Hon'ble Supreme Court, it was the primary and foremost obligation of the learned Trial Court to first determine the question of limitation. Moreover, it is an established principle by now that law of limitation is not merely a formality/technicality, rather said statute furnishes certainty and regularity to the human affairs, matters and dealings. It is also well settled that law helps the vigilant and not indolent. Furthermore, delay of each and every day has to be explained satisfactorily, otherwise it cannot and should not be condoned. On said settled cannons of law, this Court is fortified by case law cited as Messrs Dawood Cotton Mills Ltd Vs. Sindh Labour Appellate Tribunal and others(2006 SCMR 630), Atta Muhammad Vs. Maula Bakhsh and others (2007 SCMR 1446), Muhammad Hussain and others Vs.

Dr. Zahoor Alam(2010 SCMR 286), Muhammad Islam Vs. Inspector General of Police, Islamabad and others(2011 SCMR 8) & ‘State Bank of Pakistan through Governor and another Vs. Imtiaz Ali Khan and others’(2012 SCMR 280).

21. There is no cavil to the proposition that the limitation for filing a suit for declaration under Article 120 of the Act is six years, whereas for cancellation of an instrument under Article 91 thereof is three years. The omission of the predecessor of Respondent No.1 to assert his rights beyond the prescribed period is not a mere procedural lapse but goes to the very root of the matter. The law is well settled that rights which are not asserted for an inordinately long period are presumed to have been abandoned. The doctrine of *laches* squarely applies, and equity does not favour those who slumber over their rights. Conversely, upon the efflux of the prescribed limitation period, a vested right accrues in favour of the opposite party. In this regard, reliance is placed upon the judgments reported as Muhammad Nawaz and others vs. Mst. Saina Bibi and others (1974 SCMR 223) and Central Board of Revenue, Islamabad vs. Messrs Raja Industries (Pvt.) Ltd. (1998 SCMR 307), wherein it has been unequivocally held that compliance with statutory limitation is mandatory and cannot be circumvented even in the absence of an objection by the adversary party.

22. In the instant case the Respondent No.1 claimed his right to inheritance. It is a trite and well-entrenched principle of law that a successor cannot claim a better title than that of his predecessor. When the predecessor himself failed to challenge the mutation during his lifetime, the Respondent No.1 was debarred to resurrect stale and time-barred claim.

23. As has been discussed above, Muhammad Nawaz and Ghulam Muhammad were actual beneficiaries of the

Impugned Mutation, who throughout their lifetimes never challenged the impugned as well as other inheritance mutation. After the death of Muhammad Nawaz, suit was filed after lapse of seven years. The question of limitation was brushed aside simply on the ground that question of limitation is irrelevant in the cases of inheritance. Though it is correct that inheritance rights may, in certain circumstances, be recurring in nature, yet this principle is not absolute and is invariably subject to equitable considerations, including delay, acquiescence, and the conduct of the parties. In the present case, the delay cannot be condoned under the garb of inheritance. Reliance in this regard is placed upon “Syed Kausar Ali Shah and others v. Syed Farhat Hussain Shah and others” (2022 SCMR 1558) and “Mst. Grana through Legal Heirs and others v. Sahib Kamala Bibi and others” (PLD 2014 SC 167). The relevant extract from the latter judgment is reproduced hereunder:

“It emerges from the afore discussed case-law that the law of limitation is not entirely to be ignored or brushed aside whenever property is claimed on the basis of inheritance. The conduct of such claimant may become relevant and material when the bar of time limitation is pleaded by the adversary. A defendant may show that the plaintiff by her or his acts, overt or implicit, had demonstrated acquiescence in the defendant’s title to the suit properly thereby allowing him to deal with it as exclusive owner, for instance regularly and openly disposing of parts of the property or developing it at his own expense over a period of time within the knowledge of the plaintiff. When in such circumstances the defendant/heirs transfers the property for valuable consideration the transferee is entitled to believe that the transferor had a valid title to transfer. It may be reiterated that in Ghulam Ali’s case the question of interest protection of transferees from a legal heir in a suit of inheritance was left open as the transferees were not impleaded as defendants. That is not the case here. The very facts of this

case would demonstrate that the plaintiff had acquiesced in the various transfers made of the suit property from time to time.”

24. The suit was *ex facie* barred by limitation, yet both learned Courts below gravely erred in misreading the evidence and misapplying the settled law of limitation, rendering their findings unsustainable as the suit was liable to dismissal being time-barred.

25. Another significant aspect of the case is that the Respondent No.1 utterly failed to plead and prove the point of time when he first acquired knowledge of the Impugned Mutation. In matters involving challenge to long-standing entries, the question of knowledge assumes pivotal importance for the purposes of limitation. The record reveals that neither specific averment was made in the plaint regarding the date, time or circumstances under which the Respondent No.1 came to know about the Impugned Mutation, nor any evidence was led by him to substantiate such plea. In the absence of proof of late discovery, the presumption of constructive knowledge attached to revenue record entries would operate against the Respondent No.1, particularly when such entries remained in the public record for decades and his father had complete knowledge of the Impugned Mutation. This omission further renders the claim of Respondent No.1 tainted and legally flawed.

26. Another important aspect in determining the legal status of the parties is that the Impugned Mutation was sanctioned in 1965 in the presence of Muhammad Nawaz and Ghulam Muhammad. At that time, both individuals voluntarily relinquished their rights of inheritance in favour of the petitioner to the extent of the property situated in *Mauza Shah Dhanial*. This fact is further evidenced by their lifelong conduct, as they never challenged the Impugned

Mutation. It appears that there was a consensual arrangement between the parties whereby, in *Mauza Shah Ojla*, the estates of Pehlwan and Sarfraz were to be distributed strictly in accordance with the principles of inheritance. Under this arrangement, the petitioner was allocated a one-half share in the estate of Sarfraz. However, at the time of sanctioning the Impugned Mutation, both paternal uncles safeguarded the rights and interests of their niece i.e. the present petitioner by acquiescing to the transfer of the entire share of Sarfraz in her favour. In doing so, Muhammad Nawaz and Ghulam Muhammad effectively abandoned their respective rights of inheritance in the estate of Sarfraz.

27. So far as the portrayal of Ghulam Muhammad as an “interested witness” on the ground that he is father-in-law of the petitioner is concerned, such a conclusion is clearly misconceived. At the time of the sanctioning of the Impugned Mutation, the petitioner was merely about two years of age and, therefore, had no capacity or role in the transaction. The mutation was affected in the presence of the surviving sons, including Ghulam Muhammad, who consciously and voluntarily relinquished their rights of inheritance in favour of the petitioner. In these circumstances, such witnesses cannot be termed as “interested” in the sense alleged, particularly, when their conduct was against their own proprietary interest.

28. Moreover, by seeking cancellation of the Impugned Mutation on the grounds of fraud and misrepresentation, Respondent No. 1 is, in essence, imputing allegations of fraud against his own father, Muhammad Nawaz. Notably, Muhammad Nawaz, during his lifetime, neither challenged the Impugned Mutation, nor raised any objection thereto at any point. His consistent silence and acquiescence lent

strong corroboration to the genuineness and validity of the Impugned Mutation, thereby further undermining the claim of Respondent No.1.

29. Long-standing entries in the revenue record carry a presumption of correctness, which becomes fortified and strengthened with the passage of time. Any attempt to unsettle such entries after several decades would inevitably result in uncertainty, instability, and anarchy in property relations. Even otherwise, the long-standing entries in the revenue record made in favour of the petitioner are protected under Section 52 of the West Pakistan Land Revenue Act, 1967, which for ready reference is reproduced hereunder:

“52.Presumption in favour of entries in record-of-rights and periodical record.-----Any entry made in a record-of-rights in accordance with the law for the time being in force, or in a periodical record in accordance with the provisions of this Chapter and the rules made thereunder, shall be presumed to be true until the contrary is proved or a new entry is lawfully substituted therefor.”

This principle has also been strengthened in the judgments reported as Hakim Khan vs. Aurangzeb and another (1979 SCMR 625), Mst. Phaphan through L.Rs. vs. Muhammad Bakhsh and others (2007 SCMR 655) and Muhammad Khaliq (deed) through Legal Heirs vs. Gul Afzal Khan and others (PLD 2015 SC 247).

30. Even otherwise, it is a settled proposition of law that mutation entries, which though are not documents of title, yet carry a presumption of correctness and regularity in the light of judgments reported as Amjad Hussain and another vs. Mst. Shagufta and 2 others (PLD 1996 Peshawar 64), Jan Muhammad vs. Mst. Salamat Bibi and others (2002 SCMR 1408), Shaukat Hussain vs. Civil Judge, Multan and 2 others (2006 YLR 349), Mst. Razia Begum vs. Jang Baz and 3

others(2012 CLC 105) and Nazish Ishaq vs. Additional District Judge Liaquatpur and 3 others(2013 YLR 1118) and remain operative unless set aside through lawful means. Where such entries have stood unchallenged for a considerable length of time, they attain a degree of finality in the absence of any specific and cogent allegation of fraud, misrepresentation or concealment. Fraud, being a serious assertion, must not only be explicitly pleaded but also proved through convincing and reliable evidence. In the present case, no such allegation has been substantiated on record. Consequently, the Impugned Mutation, having been remained intact for decades without challenge, cannot be lightly disturbed, as doing so would unsettle long-established rights and defeat the principle of legal certainty.

31. This Court normally does not interfere in the concurrent findings of facts recorded by the Courts below, but here the impugned decrees being classic example of wrong and illegal exercise of jurisdiction and clearly tainted with misreading and non-reading of evidence besides patent violation of the law floating on its surface cannot be allowed to sustain. On being faced with such situation, this Court cannot shut its eyes and is always under obligation to rectify the error by interference in such like illegal findings. Reliance can be placed upon the judgments reported as Ghulam Muhammad and 3 others Vs. Ghulam Ali (2004 SCMR 1001)Mushtari Khan vs. Jehangir Khan (2006 SCMR 1238), Muhammad Nawaz@Nawaza Vs. Member Judicial BoR and others (2014 SCMR 914) and Nazim-ud-Din and others Vs. Sheikh Zia-ul-Qamar & others(2016 SCMR 24).

32. Upon minute analysis of findings rendered by learned Courts below, this Court holds that the learned Courts below

not only misread the evidence on record but also passed the impugned judgments and decrees in violation of position of law settled by the superior Courts of the country.

33. Consequently, instant Civil Revision is **allowed**, impugned judgments and decrees passed by the learned Courts below are **set aside** and suit filed by Respondent No.1 is hereby **dismissed** with no order as to costs.

(MUHAMMAD RAZA QURESHI)
JUDGE

Approved for reporting

JUDGE

Syed Zameer

